

1.

| CASE #      | CASE NAME      | HEARING NAME                                                                       |
|-------------|----------------|------------------------------------------------------------------------------------|
| CVPS2406454 | GUBIN VS MAJER | MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT OF SYDNEY GUBIN BY DENNIS N. WALSH |

**Tentative Ruling:** Code of Civil Procedure section 473(d) permits the court to vacate a void judgment or order. “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 (internal citations omitted) (emphasis added).)

A summons is a form of court process issued in the course of a judicial proceeding. (Civ. Proc. Code, § 17(b)(7).) “A summons is the process by which a court acquires personal jurisdiction over a defendant in a civil action.” (*MJS Enterprises, Inc. v. Superior Court* (1984) 153 Cal.App.3d 555, 557.)

Under Code of Civil Procedure section 418.10(a), a defendant may file a motion to quash service of summons on the following grounds: (1) lack of jurisdiction; (2) inconvenient forum; or (3) dismissal pursuant to a delay in prosecution. The motion must be brought on or before the last day to plead or any further time for good cause. (*Id.* at § 418.10(a).)

When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, the plaintiff has the burden to prove the existence of jurisdiction by proving the facts requisite to an effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.) However, a registered process server creates a rebuttable presumption, affecting the burden of producing evidence, that the facts stated in the declaration are true. (Evid. Code § 647.) The filing of a proof of service creates a rebuttable presumption that service was proper only if the proof of service complies with the applicable statutory requirements. (*Floveyor International, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential....” (*Braugh v. Dow* (2023) 93 Cal.App.5th 76, 87.)

Code of Civil Procedure section 415.20(b) permits substituted service at a person’s dwelling house, usual place of abode, usual place of business or usual mailing address. For individuals, there must be a showing that the summons “cannot with reasonable diligence be personally delivered.” (*Id.* at § 415.20.) This usually requires two or three attempts to personally serve. (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750; *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 389.) The summons must be left with a “competent member of the household” or person “apparently in charge of his or her office, place of business or usual mailing address.” (Code Civ. Proc. § 415.20.) “Service must be made upon a person whose ‘relationship with the person to be served makes it more likely than not that they will deliver process to the named party.’” (*Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387, 139.) Here, the proof of service indicates a registered process server attempted service on 7/17/25, 7/19/25 and 7/21/25 before finally sub-serving Defendant on 7/23/25.

Defendant does not even challenge service. Instead, he argues that the default is void because there is no statement of damages. However, that is not a proper challenge to the service of summons, but rather, whether a default judgment can be entered.

As for sanctions under Code of Civil Procedure section 128.5, the court should deny Plaintiffs' request. Section 128.5 allows a court to order a party or counsel, or both to pay the reasonable expenses, including attorney's fees, incurred by the other party as a result of bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. Section 128.5(a) requires either: (1) bad faith actions or tactics or (2) a frivolous action. Actions or tactics includes "the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer or other responsive pleading." (*Id.* at § 128.5(b)(1).) Frivolous is "totally and completely without merit or for the sole purpose of harassing an opposing party." (*Id.* at § 128.5(b)(2).) The standard is based on a subjective bad faith determination rather than objective. (*In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 134.)

Despite the denial of the motion, the court shall not impose sanctions as Defendant's motion has merit regarding the ability of Plaintiff in obtaining a default judgment. Under the current situation, Plaintiffs will not receive a default judgment. The complaint lacks any notice about the amount of damages, and therefore, any default judgment would violate due process. (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166.) Nor would a statement of damages cure any defect, because it applies to personal injury and wrongful death actions, and must be served before entry of default. (Code Civ. Pro. §425.11.) This is not a personal injury or wrongful death action, and thus a statement of damages does not cure a defect. (*Dhawan v. Biring* (2015) 24 Cal.App.4th 963, 968.)

Motion to Quash Service of Summons DENIED.

Request for Sanctions DENIED.

2.

| CASE #      | CASE NAME      | HEARING NAME                                                                |
|-------------|----------------|-----------------------------------------------------------------------------|
| CVPS2406454 | GUBIN VS MAJER | MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF SYDNEY GUBIN BY DENNIS N. WALSH |

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

3.

| CASE #      | CASE NAME                    | HEARING NAME                                                                                                      |
|-------------|------------------------------|-------------------------------------------------------------------------------------------------------------------|
| CVPS2506601 | TAPIA MORALES VS KIRKPATRICK | MOTION FOR AMENDING THE FILING DATE OF COMPLAINT NUNC PRO TUNC BY REYNA AIDEE TAPIA MORALES, YOVANI AGUILAR TAPIA |

**Tentative Ruling:** Code of Civil Procedure section 473(d) permits the court, upon motion, to correct clerical mistakes in its judgments or orders. A clerical error is an inadvertent error in entering or recording the judgment rather than in rendering the judgment, i.e. judicial error. (*Bell v. Farmers Ins. Exch.* (2006) 135 Cal.App.4th 1138, 1144.) While section 473(d) speaks in terms of judgments and orders, California courts have consistently applied nunc pro tunc principles to deem complaints filed when clerks improperly reject them. (*Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 778; *Carlson v. State of California Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 1282-1283.) The remedy is not limited to post-judgment corrections.